

Lesson 16

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In a negotiation, each **party** presents their own negotiating position, which outlines what they want to achieve and what they are willing to give up. A negotiating position can include specific **demands**, such as a desired price or terms, as well as more general goals, such as a desire for a long-term partnership or an **outcome** that meets certain needs. It is common for the parties in a negotiation to have different interests and **priorities**, so a key aspect of any negotiating position is finding areas of **common ground**, as well as identifying and addressing areas of disagreement. It is also important to be realistic and flexible in one's position in order to find a solution that works for everyone. When expressing a negotiating position, it is best to avoid the use of jargon or complex terms. Instead, use simple and clear language that makes it easier for the other party to understand and make **counter offers**. You should also stick to facts and avoid making personal attacks or accusations.

A. Match the words in bold from the text to their definitions.

1.: shared interests, beliefs, or ideas.
2.: one of the sides in a negotiation.
3.: strong requests.
4.: the final result of an activity or process.
5.: things that are considered very important by either party.
6.: suggestions made by one side in response to unacceptable suggestions.



B. Unscramble the sentences to form simple negotiation positions.

1. \$100 per unit / to sell / we want / our product for

.....

2. is / minimum order / 50 units / quantity / our

.....

3. bulk orders / 10% for / we are / discount of / offer a / willing to

.....

4. 30% in advance / terms are / and 20% upon receipt / our payment / 50% upon delivery

.....

5. add an additional / the product / to consider custom / modifications to / we are willing /
but we will / of \$500

.....

6. to your request / are any issues / within 24 hours / for assistance / we will respond / with
the product / if there

.....

Some examples of negotiation positions include:

The **win win** position: the negotiator believes that both parties can come out ahead.

The **hardline** position: the negotiator is unwilling to make any concessions.

The **accommodating** position: the negotiator is willing to prioritize the other party's needs.

The **compromise** position: the negotiator is willing to reach a middle ground.

C. Label each negotiation position below with a matching example above.

1.	We are not able to lower our price for the requested service as the initial offer is already below market rates.
2.	We are able to accept a lower price per unit on the condition that your company accepts a larger minimum order.
3.	By accepting the terms of our lease agreement, your company will secure an office space that meets your requirements and our company will secure a reliable long term tenant.
4.	Because of the current difficult economic conditions, we are willing to lease out our equipment at a discounted rate.

D. Complete the negotiation sentences and phrases with the words from the box.

agreement	willing	finalise	propose	item
compromise	reviewing	understanding	position	fair

1. Let's start by the current contract.
2. I would like to a change in...
3. I understand your, but I feel that...
4. How about we consider a solution of...
5. Can we come to an on...
6. Let's move forward with the that...
7. I'm to compromise on...
8. I think it's to say that...
9. Can we put this issue to rest and move on to the next?
10. Let's the agreement and sign the contract.



E. Read the background details of an employment contract negotiation.

An employee at a company is nearing the end of their contract. Before signing a new contract, they must meet with their employer and negotiate new terms and conditions.

Employee's situation:

Has taken on additional responsibilities and projects within the company.

Has been actively seeking career advancement opportunities.

Has been with the company for several years and has consistently received positive performance evaluations.

Employer's situation:

The company is facing budget constraints and is seeking to minimise expenses.

The company places a high value on consistency and stability in the workplace.

The company has a strong focus on employee training and development programs.

Negotiation items:	employee	employer
Compensation and benefits		
Work schedule and time off policies		
Job security and job advancement opportunities		

C. In pairs, discuss the negotiation items and rank them in order of importance (1 to 3) for both an employee and an employer. Which item do you think will be the most contentious in the negotiation?

Employee's Negotiation Position

1. Seeking a raise in salary to reflect increased job responsibilities and performance.

- 10% raise (5 points)

- 5% raise (3 points)

- 3% raise (2 points)

2. Requesting an improvement in benefits such as health insurance and paid time off.

- top-level insurance cover and five extra annual leave days (6 points)

- mid-level insurance cover and three extra annual leave days (2 points)

- basic-level insurance cover and two extra annual leave days (1 point)

3. Looking for more flexibility in the work schedule.

- work from home two days per week and flexible start and finish times (6 points)

- work from home two days per week and regular start and finish times (4 points)

4. Seeking job security and opportunities for advancement within the company.

- a five-year contract and promotion to senior manager by year three (7 points)

- a four-year contract and promotion to assistant manager by year two (3 points)

Employer's Negotiation Position

1. Maintaining current compensation, citing budget constraints.

3% raise (6 points)

5% raise (2 points)

10% raise (1 point)

2. Maintaining current benefits, again citing budget constraints.

basic-level insurance cover and no extra annual leave days (5 points)

mid-level insurance cover and two extra annual leave days (3 points)

top-level insurance cover and three extra annual leave days (2 points)

3. Resistant to changes in the work schedule, citing the need for consistency in the workplace.

work from home two days per week and regular start and finish times (7 points)

work from home two days per week and flexible start and finish times (3 points)

4. Seeking to maintain current position job responsibilities as outlined in the current contract.

a four-year contract and promotion to assistant manager by year two (6 points)

a five-year contract and promotion to senior manager by year three (4 points)